

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1678
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-420.06, to read:

4 36-420.06. Patients and residents; do-not-resuscitate orders;
5 definition

6 A. ~~[AN EMPLOYEE OF] [THE DEPARTMENT SHALL CONDUCT AN INVESTIGATION~~
7 ~~IF THE DEPARTMENT RECEIVES A COMPLAINT FROM AN EMERGENCY MEDICAL CARE~~
8 ~~TECHNICIAN OR EMERGENCY MEDICAL RESPONDER ALLEGING THAT] A HEALTH CARE~~
9 ~~INSTITUTION [WHO PROVIDES DIRECT CARE TO A PATIENT OR RESIDENT SHALL~~
10 ~~COMPLETE A FORM AS PRESCRIBED BY THE DEPARTMENT, WHICH MAY BE ELECTRONIC,~~
11 ~~FOR EACH PATIENT OR RESIDENT UNDER THE EMPLOYEE'S CARE TO UPDATE THE]~~
12 ~~[FAILED TO PROVIDE A] PATIENT'S OR RESIDENT'S [INFORMATION BEFORE THE END~~
13 ~~OF THE EMPLOYEE'S WORKDAY OR SHIFT AND ANOTHER EMPLOYEE ASSUMES THE CARE~~
14 ~~OF THE PATIENT OR RESIDENT] [DO-NOT-RESUSCITATE ORDER AFTER REQUESTING~~
15 ~~EMERGENCY MEDICAL SERVICES]. [THE FORM SHALL INCLUDE AT LEAST THE~~
16 ~~FOLLOWING:~~

17 1. ~~THE PATIENT'S OR RESIDENT'S NAME AND DATE OF BIRTH.~~

18 2. ~~THE PATIENT'S OR RESIDENT'S ADVANCE DIRECTIVES, INCLUDING A DO~~
19 ~~NOT RESUSCITATE ORDER OR PROVIDER ORDERS FOR LIFE-SUSTAINING TREATMENT,~~
20 ~~AND A RELEASE ALLOWING THE HEALTH CARE INSTITUTION TO SHARE THE PATIENT'S~~
21 ~~OR RESIDENT'S PROTECTED HEALTH INFORMATION WITH A THIRD PARTY.~~

22 3. ~~THE PATIENT'S OR RESIDENT'S CURRENT VITAL SIGNS, INCLUDING BLOOD~~
23 ~~PRESSURE, HEART RATE, RESPIRATORY RATE, OXYGEN SATURATION AND TEMPERATURE,~~
24 ~~AND ANY RECENT LABORATORY RESULTS, SUCH AS BLOOD GLUCOSE.~~

25 4. ~~A LIST OF THE PATIENT'S OR RESIDENT'S MEDICATIONS AND ANY~~
26 ~~ALLERGIES.~~

27 5. ~~THE NAME OF THE PATIENT'S OR RESIDENT'S PRIMARY CARE PROVIDER,~~
28 ~~EMERGENCY CONTACT OR POWER OF ATTORNEY.~~

29 6. ~~THE HEALTH CARE INSTITUTION'S POINT OF CONTACT.]~~

1 B. FOR THE PURPOSES OF THIS SECTION, "HEALTH CARE INSTITUTION"
2 MEANS AN ASSISTED LIVING CENTER, AN ASSISTED LIVING HOME, AN ASSISTED
3 LIVING FACILITY, HOSPICE, A NURSING-SUPPORTED GROUP HOME, A NURSING CARE
4 INSTITUTION OR A RESIDENTIAL CARE INSTITUTION THAT IS LICENSED PURSUANT TO
5 THIS CHAPTER.

6 Sec. 2. Title 36, chapter 5.1, article 1, Arizona Revised Statutes,
7 is amended by adding section 36-576, to read:

8 36-576. Residents; do-not-resuscitate orders; rules

9 A. ~~[AN EMPLOYEE OF] [THE DEPARTMENT SHALL CONDUCT AN INVESTIGATION~~
10 ~~IF THE DEPARTMENT RECEIVES A COMPLAINT FROM AN EMERGENCY MEDICAL CARE~~
11 ~~TECHNICIAN OR EMERGENCY MEDICAL RESPONDER ALLEGING THAT] A GROUP HOME OR~~
12 ~~BEHAVIORAL-SUPPORTED GROUP HOME [WHO PROVIDES DIRECT CARE TO A RESIDENT~~
13 ~~SHALL COMPLETE A FORM AS PRESCRIBED BY THE DEPARTMENT, WHICH MAY BE~~
14 ~~ELECTRONIC, FOR EACH RESIDENT UNDER THE EMPLOYEE'S CARE TO UPDATE THE]~~
15 ~~[FAILED TO PROVIDE A] RESIDENT'S [INFORMATION BEFORE THE END OF THE~~
16 ~~EMPLOYEE'S WORKDAY OR SHIFT AND ANOTHER EMPLOYEE ASSUMES THE CARE OF THE~~
17 ~~RESIDENT] [DO-NOT-RESUSCITATE ORDER AFTER REQUESTING EMERGENCY MEDICAL~~
18 ~~SERVICES]. [THE FORM SHALL INCLUDE AT LEAST THE FOLLOWING:~~

- 19 1. ~~THE RESIDENT'S NAME AND DATE OF BIRTH.~~
- 20 2. ~~THE RESIDENT'S ADVANCE DIRECTIVES, INCLUDING A DO NOT~~
21 ~~RESUSCITATE ORDER OR PROVIDER ORDERS FOR LIFE-SUSTAINING TREATMENT, AND A~~
22 ~~RELEASE ALLOWING THE GROUP HOME OR BEHAVIORAL-SUPPORTED GROUP HOME TO~~
23 ~~SHARE THE RESIDENT'S PROTECTED HEALTH INFORMATION WITH A THIRD PARTY.~~
- 24 3. ~~THE RESIDENT'S CURRENT VITAL SIGNS, INCLUDING BLOOD PRESSURE,~~
25 ~~HEART RATE, RESPIRATORY RATE, OXYGEN SATURATION AND TEMPERATURE, AND ANY~~
26 ~~RECENT LABORATORY RESULTS, SUCH AS BLOOD GLUCOSE.~~
- 27 4. ~~A LIST OF THE RESIDENT'S MEDICATIONS AND ANY ALLERGIES.~~
- 28 5. ~~THE NAME OF THE RESIDENT'S PRIMARY CARE PROVIDER, EMERGENCY~~
29 ~~CONTACT OR POWER OF ATTORNEY.~~
- 30 6. ~~THE GROUP HOME'S OR BEHAVIORAL-SUPPORTED GROUP HOME'S POINT OF~~
31 ~~CONTACT.]~~

32 B. THE DEPARTMENT SHALL ADOPT RULES TO ENSURE COMPLIANCE WITH THE
33 REQUIREMENTS OF THIS SECTION.

34 Sec. 3. Vulnerable adult system study committee; membership;
35 duties; report; delayed repeal

36 A. The vulnerable adult system study committee is established
37 consisting of the following members:

38 1. Two members of the house of representatives who are appointed by
39 the speaker of the house of representatives and who are members of
40 different political parties. The speaker of the house of representatives
41 shall designate one of these members to serve as cochairperson of the
42 committee.

43 2. Two members of the senate who are appointed by the president of
44 the senate and who are members of different political parties. The
45 president of the senate shall designate one of these members to serve as
46 cochairperson of the committee.

- 1 3. The director of the department of health services or the
2 director's designee.
- 3 4. The director of the department of economic security or the
4 director's designee.
- 5 5. The director of the Arizona health care cost containment system
6 or the director's designee.
- 7 6. One member who represents the governor's office and who is
8 appointed by the governor.
- 9 7. One member who represents the attorney general's office and who
10 is appointed by the attorney general.
- 11 8. The department of economic security's long-term care ombudsman
12 or the ombudsman's designee.
- 13 9. One member who currently serves as a public fiduciary and who is
14 appointed by the governor.
- 15 10. Two members who are employed by a local law enforcement agency
16 or by a statewide organization that represents law enforcement and who are
17 appointed by the governor.
- 18 11. The executive director of the Navajo area agency on aging or
19 the executive director's designee.
- 20 12. The executive director of the inter tribal council of Arizona
21 or the executive director's designee.
- 22 13. Two members who represent assisted living facilities and who
23 are appointed by the speaker of the house of representatives.
- 24 14. Two members who represent nursing care institutions and who are
25 appointed by the governor.
- 26 15. One member who represents a statewide organization that
27 advocates for elderly vulnerable adults and who is appointed by the
28 president of the senate.
- 29 16. One member who represents a statewide organization that
30 advocates on behalf of persons affected by Alzheimer's disease and who is
31 appointed by the president of the senate.
- 32 17. One member who represents a statewide association that
33 advocates on behalf of persons who provide services to persons with
34 developmental disabilities and who is appointed by the speaker of the
35 house of representatives.
- 36 18. One health care professional who is appointed by the speaker of
37 the house of representatives and who both:
38 (a) Is licensed pursuant to title 32, Arizona Revised Statutes.
39 (b) Provides health care services to elderly vulnerable adults.
- 40 19. One member who is on the governor's advisory council on aging
41 and who is appointed by the governor.
- 42 20. One member who represents a statewide association representing
43 firefighters in this state and who is appointed by the president of the
44 senate.
- 45 B. The vulnerable adult system study committee shall:
46 1. Develop and implement a coordinated vulnerable adult services
47 delivery system that ensures the health and safety of vulnerable adults.

1 2. Recommend best practices relating to responding to and
2 investigating complaints.
3 3. Research best practices related to adult protective services at
4 the state, municipality and community levels.
5 4. Research and make recommendations on how the vulnerable adult
6 system can ensure that vulnerable adults receive services they require
7 after the vulnerable adult system completes its investigatory duties,
8 including assigning a specific agency with the responsibility to provide
9 or coordinate case management.
10 5. Research and identify common statewide outcomes.
11 6. Identify best practices for data collection and data sharing by
12 various entities involved in providing vulnerable adult services.
13 7. Review and recommend changes to the statutes and rules that
14 govern vulnerable adult services.
15 C. The cochairpersons may designate work groups to research, study
16 and make recommendations to the study committee. At least two work groups
17 shall be established to separately address the needs of persons with
18 developmental disabilities and persons who are elderly or who have a
19 physical disability, including the training requirements for persons who
20 are caring for these populations.
21 D. Once the study committee establishes a strategic direction, the
22 department of economic security, in conjunction with the work groups,
23 shall develop an action plan for implementation.
24 E. Public members of the study committee are eligible to receive
25 reimbursement of expenses pursuant to title 38, chapter 4, article 2,
26 Arizona Revised Statutes.
27 F. On or before October 1, 2026 and each October 1 thereafter, the
28 study committee shall submit a report of its findings and recommendations
29 to the governor, the president of the senate and the speaker of the house
30 of representatives and shall provide a copy of this report to the
31 secretary of state.
32 G. This section is repealed from and after December 31, 2028.

33 Enroll and engross to conform
34 Amend title to conform

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